IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-III

ITEM No. 309
CA-477/2022
In
CP.CAA-117(ND)/2022

IN THE MATTER OF:
M/s. R.P.India Foods Pvt Ltd.AND Food Processesing Company Pvt Ltd. .... Petitioner/Applicant

Order under Section 230-232 of the Companies Act, 2013

Order delivered on 17.02.2025

CORAM:
SHRI BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:

For Applicant	:	Mr. Pulkit Deora, Mr. Harsh Gurbani, Ms. Anjali Soni Advs.
For the OL	:	Mr. Kartikeya Asthana Adv.
For the RD	:	Mr. Sumit Kansal, Mr. Aryan Gupta Advs.

ORDER

CA-477/2022

Mr. Pulkit Deora, Ld. Counsel appears for the Applicant and Mr. Kartikeya Asthana, Ld. Counsel appears for the OL and Mr. Sumit Kansal, Ld. Counsel appears for the RD.

The reports filed by the OL and RD are on record.

No one has appeared on behalf of Income Tax Department nor filed any report. Therefore, the Income Tax Department is set *ex-parte*.

The Applicant is directed to file an undertaking on behalf of transferee company for transferor and the transferee company with respect to the payment of income tax dues in case the present scheme is approved within ten days'.

List the matter **on 10.03.2025.**

-Sd-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-Sd-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

ANAND DUBEY